Amendment ("**Amendment 1**") to the Consultancy Contract

This contract is made on August 1, 2020 between

Aaron Wise
920 Leaping Brook Road
Lincolnton, NC 28092 USA
Tel: +258 85 0707157
Email: aaronbwise@gmail.com

hereinafter referred to as "**Consultant**".

and

Iodine Global Network
P.O. Box 51030
375 des Epinettes
Ottawa, Ontario Canada, K1E3EO

hereinafter referred to as "**IGN**",

the Consultant and IGN individually hereinafter referred to as a "**Party**", together as "**Parties**",

concerning the revision of the contract with the title "Consultant Contract IGN Contract No **IGN Contract No 2020-WISE - 01**" (referred to as the "**Contract**").

Preamble

The **Consultant** and the **IGN** entered into a Consultant Contract with the title "Consultant Contract IGN Contract No 2020-WISE 01" on August 1, 2020.

The **Parties** intend to modify the **Contract**.

Therefore, the Parties agree as follow:

1. Modification of the Contract

The section "2. Services and Deliverables", "Schedule and Administration", "Remuneration" of the Contract is deleted completely and replaced by the following:

Major Tasks:

1. Comparison of cereal production data from MAWF/NAB and HIES to see to what extent they are similar or differ;
2. Review all available data (consumption and production) to try to estimate variations in regional consumption of the different cereals with the objective of trying to identify areas or periods with primarily communal mahangu consumption

3. From most appropriate sources, calculate consumption/availability of fortifiable (imported and commercially produced) wheat, maize and mahangu, vegetable oil, sugar and milk as average g/capita/day nationally, for development of national fortification standards. Where available, compile data on regional consumption/availability of these foods, to illustrate regional variations in consumption/availability.
4. Using the same food consumption tables and matching scheme already prepared by FAO ADePT for 2019 macronutrient estimates, coordinate the integration of micronutrient values to enable FAO ADePT team to analyze micronutrient intake with breakdown by national, urban/rural, regions, ethno-linguistic group. This will involve reviewing the food matching and applying the most appropriate FCT for each food. Provide FAO with necessary inputs to enable the outputs (ie estimates of micronutrient intake) of the current Namibian diet, including fortified food where applicable
5. Review SADC calculations, which used the A2Z Food Formulator, on estimated nutrient contribution of fortified foods to ensure calculations were correctly done.
6. Analyze raw data from Namibia DHS as follows:
    a. DHS 2000 to identify proportion of households per region with (i) "block salt and (ii) salt from salt pans
    b. DHS 2006/7 to see if household coverage of iodized salt is available
    c. Comparison of household coverage of iodized salt from 2000 and 2013 to see if there is a poor correlation between the two years.
7. Review DRB data on household salt intake to address any data quality issues and generate a direct assessment of national and regional intake (g/c/d) of household salt (01192.01 Salt)
8. Calculate the contribution of household salt (from point 7) and processed food (from ADEPT) to salt and iodine intake using the IGN Programme Guidance on the Use of Iodized Salt in Industrially Processed Foods. Use this data to estimate iodine intake for the following scenarios:
    a. Current Namibian diet (ie. all household salt is iodized as per Namibian standards but no processed foods – as it is not legislated)
    b. Potential future Namibian diet (ie. all household salt and all salt used in the manufacture of processed foods (domestically produced and imported) is iodized)

Expected deliverables:

- A powerpoint with methodology and results of each of the above-mentioned 8 tasks, including Annexes as needed for more detailed results.

- All relevant data and analysis files in a folder, organized by task such that users can replicate or continue your analysis

Schedule, Process and Administration

The specific assignment of the Consultant will be for a maximum of 18 days between August 01, 2020 and February 28, 2021 unless terminated by either party in accordance with this contract. The term and scope of this contract may be extended by mutual written agreement.

Remuneration

The fee for this work will be for a maximum of $7200. Payment will be made upon receipt and approval of by the IGN Executive Director of a detailed invoice which includes the days, reports of progress achieved and copies of major deliverables and output against each of the major tasks.

These amendments are necessary because of additional analysis needed and possible.

2. Effective date of the Amendment 1

This Amendment 1 shall enter into effect once signed in full by both Parties and shall have retroactively effect from August 1, 2020

3. Effect of the Amendment 1 on the Contract

Except as amended in this Amendment 1, any and all provision, obligations and stipulations set forth in the Contract shall remain in full force and effect.

Signed by the duly authorized representatives of the Parties:

Consultant

Aaron Wise
North Carolina, USA
dated Februrary 1, 2021

IGN

Jan Werner Schultink
IGN Executive Director
Ottawa, Canada
dated Februrary 1, 2021

Terms and Conditions of this Contract

Travel Policy

The **Consultant** will only travel as is necessary to carry out the Services. Prior written approval from the IGN Treasurer is required to carry out any travel required. Travel will be conducted according to the IGN Travel Policy. An estimated budget for travel needs to be approved in advance but the **Consultant** is able to pay for tickets against reimbursement. Reimbursement for all travel, accommodation and other expenses will require receipts and an itemized travel claim.

Liability and Insurance

The **Consultant** shall arrange for their own proper health and travel insurance and shall not hold IGN liable for costs incurred as a result of loss of property, illness or death. To the extent permitted by law, IGN agrees that the maximum aggregate liability of the **Consultant** in contract, tort (including negligence and breach of statutory duty) or otherwise for any breach of this contract shall in no circumstances exceed the lesser of a) the total funds actually received by the **Consultant**, or (b) USD 50,000.

Confidentiality

The **Consultant** shall not, during the terms of this Contract, and within five years after its expiration, disclose any proprietary information related to the Services, this Contract or the IGN's business or operation with the prior written consent of the IGN.

Intellectual Property

The **Consultant** retains ownership and/or control of any concepts, know-how, tools, frameworks and intellectual property which are proprietary to it and which were previously developed outside of this contract, but which may be used during or for the purposes of this contract.
Design documents, specifications, reports and all relevant data such as maps, diagrams, plans, statistics and supporting records and materials compiled and prepared in the course of the Services (the "Intellectual Property Rights") shall be the property of the IGN. The **Consultant** may retail a copy thereof, provided that such copy shall not be used for purposes unrelated to the Contract without the approval of the IGN.

Global Access

The **Consultant** will conduct and manage the Project and the Funded Developments in a manner that ensures Global Access. Global Access commitments will survive the term of this Agreement. "*Funded Developments*" means the products, services, processes, technologies, materials, software, data, other innovations, and intellectual property resulting from the Project (including modifications, improvements, and further developments to Background Technology). "*Background Technology*" means any and all products, services, processes, technologies, materials, software, data, or other innovations, and intellectual property created by the **Consultant** or a third party prior to or outside of the Project used as part of the Project. "*Global Access*" means: (a) the knowledge and information gained from the Project will be promptly and broadly disseminated; and (b) the Funded Developments will be made available and accessible at an affordable price (i) to people most in need within developing countries.

Assignment, Conflict of Interest and Prohibited Activities

The **Consultant** may not, except with the prior approval of the IGN, assign or transfer the Contract or any of the Services, nor may he/she engage any sub-**Consultant** to perform any part of the Services. The IGN's approval of the assignment or transfer of any part of the Contract, or of the engagement of any sub-**Consultant**, shall not relieve the **Consultant** of any of his obligations under the Contract. The **Consultant** shall not engage, directly or indirectly, in any other work, business or professional activities that may conflict with the performance of the Services. The **Consultant** warrants that to the best of his knowledge at the date of signing this Contract no conflict of interests exists. If during the

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course of this Contract, a conflict or risk of conflict of interest should arise, the **Consultant** will notify the IGN immediately in writing.

Prevention of Sexual Abuse and Exploitation

The **Consultant** shall take all appropriate measures to prevent sexual exploitation or abuse of anyone by its employees or any other persons engaged and controlled by the Consultant to perform any services under the Contract. Any breach of the provisions by the Consultant shall entitle IGN to terminate the contract with immediate effect. The consultant must sign the Code of Conduct attached to this contract.

Anti-Corruption; Anti-Bribery

The **Consultant** will not offer or provide money, gifts, or any other things of value directly or indirectly to anyone in order to improperly influence any act or decision relating to the Project, including by assisting any party to secure an improper advantage.

Lobbying and Electioneering Prohibition

The **Consultant** may not use Grant Funds to influence the outcome of any election for public office or to carry on any voter registration drive. The **Consultant** acknowledges that the IGN has not earmarked Grant Funds to support lobbying activities or to otherwise support attempts to influence legislation. The **Consultant** agrees to comply with any national, state, local, or other lobbying, gift, and ethics rules applicable to the Project. The IGN is not retaining or employing the **Consultant** to engage in lobbying activities.

Publicity

The **Consultant** shall not issue a press release or other public announcement regarding grants to IGN without the prior approval of IGN and the funder, when required in the grant agreement.

Termination

1. The IGN may terminate this Agreement at any time by providing the **Consultant** with 15 days written notice, without any further obligation or compensation. In the event of termination, IGN shall pay the **Consultant** for the work performed and expenses incurred up to the date of termination.
2. The **Consultant** may terminate this Agreement on giving 15 days prior written notice of termination to IGN. During the 15-day notice period, the **Consultant** is required to continue providing the services outlined in this agreement. Upon the expiry of the notice period, or if the **Consultant** fails to serve a portion or all of the required working days with the notice period, the IGN's sole liability to the **Consultant** shall be to pay to the **Consultant** any compensation up to the last day on which services were performed.
3. The IGN shall have the right to terminate this Contract effective immediately in the event of any material default/breach by the **Consultant** of the terms and conditions of this Contract. In the event of any such termination, the IGN is not liable to the **Consultant** for any undelivered work and may request the repayment of any advance payments which have yet to be disbursed related to that work.
4. The **Consultant** agrees that upon any termination for whatever reason, the **Consultant** shall at once delivery or cause to be delivered to the IGN any books, documents, effects, monies, securities or other property belonging to the IGN for which IGN is liable to others which are in possession, charge, control or custody of the **Consultant**.
5. The parties confirm that the notice provisions in this Agreement are valid and reasonable and fair and equitable. The parties agree that upon any termination of this Agreement in compliance with this Agreement, the payments made by the IGN in accordance with this Agreement shall satisfy all of the obligations that the IGN has to the **Consultant**, and that upon making of any such payments the **Consultant** shall not have any action, cause of action, claim or demand against the IGN or any person as a consequence of this Agreement.

Law Governing Contract

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The Contract shall be governed by the laws of Ontario and the laws of Canada applicable thereto.

Dispute Resolution

Any dispute arising out of this Contract, which cannot be amicably settled between the parties, shall be referred to arbitration by a single arbitrator in Ontario, Canada in accordance with the *International Commercial Arbitration Act (Ontario).*

Compliance with Donor

The **Consultant** agrees to comply with the terms stipulated by IGN of the grants for all related projects.

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IGN CODE OF CONDUCT

As an organization that supports and catalyzes global and national iodine programs, working with key public, private, scientific and civic stakeholders, it is important that those representing the organization subscribe to a set of simple core values that help not only to define our work but to elevate our profile as the authoritative voice for iodine nutrition.

1. PERSONAL AND PROFESSIONAL CONDUCT

All persons acting on behalf of IGN must:

- Respect all persons equally and without any distinction or discrimination based on nationality, race, ethnicity, gender, religious beliefs, political opinion or disability.
- Uphold IGN's integrity and professional performance through non-racist, non-discriminatory and gender-sensitive conduct.
- Uphold the highest standards of competence, efficiency and integrity and demonstrate truthfulness, dedication and honesty in their actions.
- Be patient, respectful and courteous to colleagues, beneficiaries, local leaders and government representatives, representatives of operational and implementing partners, donors and other NGO and UN colleagues.
- Act in conformity with all IGN instructions and policies.

2. CONFLICT OF INTEREST

All persons acting on behalf of IGN must:

- Perform official duties in a manner that avoids conflict of interest, thereby preserving and enhancing public confidence in IGN.
- Work to serve the mandate, objectives and values of IGN and ensure that personal views, behavior and beliefs, including political and religious convictions, do not adversely affect official duties or activities performed on behalf of IGN.

3. FINANCIAL AND MATERIAL RESOURCES

- All persons acting on behalf of IGN must protect, manage and utilize IGN human, financial and material resources efficiently and effectively, bearing in mind that these resources have been placed at IGN's disposal for the benefit of specific populations.

4. WORKING ENVIRONMENT AND PROHIBITION OF SEXUAL EXPLOITATION AND ABUSE

All persons acting on behalf of IGN must:

- Treat colleagues fairly, with courtesy, dignity and respect of different customs and cultures
- Not under any circumstances carry out any harassment act
- Observe IGN's policy on prevention of sexual abuse and exploitation as set out in the policy attached to this Contract

5. ACCOUNTABILITY

Failure to adhere to any of the provisions set out in this document by anyone working on behalf of IGN may result in disciplinary action up to and including dismissal.

Signed by the Consultant

Consultant

Date: 17.02.2021

IGN POLICY: PROTECTION FROM SEXUAL EXPLOITATION AND ABUSE

INTRODUCTION

The objective of this policy is to promulgate a policy of zero tolerance for sexual exploitation and abuse (SEA) for all IGN employees and related personnel and ensure that roles, responsibilities and expected standards of conduct in relation to SEA are known within the organization; and to create and maintain a safe environment, free from SEA, by taking appropriate measures for this purpose, internally and in the communities where IGN operates, through robust prevention and response work.
Targeted Audience: All IGN employees and related personnel.
Effective Date: December 4, 2020
Mandatory Revision Date: December 3, 2021

1. POLICY STATEMENT:

1.1. SEA violates universally recognized international legal norms and standards and are unacceptable behaviors and prohibited conduct for all humanitarian workers, including *IGN employees and related personnel.*[1]

1.2.IGN has a policy of zero tolerance towards SEA. All IGN employees and related personnel[2] are expected to uphold the highest standards of personal and professional conduct at all times, and to provide humanitarian assistance and services in a manner that respects and fosters the rights of beneficiaries and other vulnerable members of the local communities.

2. SCOPE OF APPLICATION:

2.1. This policy sets out IGN's approach to prevent and respond to SEA. The policy applies to all employees and related personnel, both on-and off-duty.

3. Definitions:

3.1. For the purposes of the present policy the term '**sexual exploitation'** means any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.

3.2. Similarly, the term **'sexual abuse'** means the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

4. COMMITMENT TO PSEA:

4.1. IGN will make every effort to create and maintain a safe environment, free from SEA, and shall take appropriate measures for this purpose in the communities where it operates, through a robust PSEA framework, including prevention and response measures.

4.2. This PSEA framework, affirms IGN's commitment to the UN Secretary General's Bulletin on Special Measures for protection from sexual exploitation and sexual abuse (ST/SGB/2003/13) and to achieving full, ongoing implementation of the IASC Six Core Principles relating to SEA[3].

5. SIX CORE PRINCIPLES[4]:

5.1. SEA by IGN employees and related personnel constitute acts of gross misconduct and are therefore grounds for termination of employment[5].

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[1] UN Secretary General's Bulletin ST/SGB/2003/13, 2003. https://undocs.org/en/ST/SGB/2003/13

[2] The term "related" personnel include, for example, sub-contractors, consultants, interns or volunteers associated with or working on behalf of IGN

[3] IASC Six Core Principles; available at: https://interagencystandingcommittee.org/inter-agency-standing-committee/iasc-six-core-principles-relating-sexual-exploitation-and-abuse.

[4] Modified for the purposes of this PSEA policy. THESE ACTS ARE NOT INTENDED TO BE AN EXHAUSTIVE LIST.

[5] Including all other forms of contractual agreements, such as for example volunteer assignment.

5.2. Sexual activity with children (persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief regarding the age of a child is not a defense.
5.3. Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading or exploitative behavior is prohibited. This includes exchange of assistance that is due to beneficiaries.
5.4. Any sexual relationship between IGN employees or related personnel and beneficiaries of assistance or other vulnerable members of the local community that involves improper use of rank or position is prohibited. Such relationships undermine the credibility and integrity of humanitarian aid work.
5.5. Where IGN employee or related personnel develops concerns or suspicions regarding sexual abuse or exploitation by a fellow worker, whether in the same organization or not, he or she must report such concerns via established reporting mechanisms.
5.6. All IGN employees and related personnel are obliged to create and maintain an environment which prevents SEA and promotes the implementation of this policy. Managers at all levels have particular responsibilities to support and develop systems which maintain this environment.

6. PSEA FRAMEWORK:

6.1. PREVENTION:

6.1.1. Vetting: IGN systematically vets all prospective job candidates in accordance with established screening procedures.
6.1.2. Training: IGN holds mandatory induction and refresher trainings[6] for all employees and related personnel on the Organization's SEA policy and procedures.

6.2. RESPONSE:

6.2.1. Reporting: IGN has safe, confidential and accessible mechanisms and procedures for personnel, beneficiaries and communities, including children, to report SEA allegations that and ensures that beneficiaries are aware of these.
6.2.2. Investigation: IGN has a process for investigation of SEA allegations in place and shall properly and without delay conduct an investigation of SEA by its employees or related personnel or refer to the proper investigative body if the perpetrator is affiliated with another entity.
6.2.2.1. Referral to National Authorities: If, after proper investigation, there is evidence to support allegations of SEA, these cases may be referred to national authorities for criminal prosecution.
6.2.3. Victim assistance: IGN has a system to promptly refer SEA survivors to available services, based on their needs and consent.

6.3. COOPERATIVE ARRANGEMENTS:

6.3.1. All IGN's contracts and partnership agreements include a standard clause requiring contractors, suppliers, consultants and sub-partners to commit to a zero-tolerance policy on SEA and to take measures to prevent and respond to SEA.
6.3.2. The failure of those entities or individuals to take preventive measures against SEA, to investigate allegations thereof, or to take corrective action when SEA has occurred, shall constitute grounds for termination of any cooperative arrangement.

[6] The training includes at a minimum: 1) a definition of SEA (that is aligned with the UN's definition); 2) a prohibition of SEA; and 3) actions that employees and related personnel are required to take (i.e. prompt reporting of allegations and referral of survivors).